Mom Is in Care and the Questions Are Piling Up: Three Things to Put on Paper First

Three pages, in order, and what can wait for a professional.

Mom is in care, and each month the bill is paid out of her savings. Dad is still at home, and everyone in the family has heard something different about the house, the accounts and his share.

Start here. Three things to put on paper, in this order.

1 List what Mom owns, and whose name is on each thing

The house, the checking and savings accounts, any retirement account, the insurance policies, anything else of value. Beside each one write whose name is on it: Mom's alone, Mom's and Dad's, a trust, or “not sure.” Copy the names from the deed or a statement where you can. The names matter: in a joint account, the Consumer Financial Protection Bureau explains, the money is jointly owned. [1]

WHY THIS COMES FIRST What Mom may be able to keep depends on what there is and how it's owned, so every conversation about it starts from this list.

2 Write down what you've been told, and who said it

Put everything you currently believe about the house, the savings and Dad's share on one page, each with where it came from: a professional who knows Mom's situation, something heard or read in general, or the family's own assumption. Don't try to settle which ones are right. Medicaid's rules are based on federal requirements, but they vary from state to state, so something true of a neighbor's mother may not be true of yours. [2]

WHY THIS COMES FIRST A general remark is easy to mistake for an answer. A name beside it keeps the two apart.

3 Sort your questions into now and later, and put a name beside each

Write every question down as it comes up. Then mark each one: is it about Mom qualifying for Medicaid now, about what she and Dad may be able to keep, or about what may come up later? Estate recovery belongs with the later ones; KFF describes it as the recovery of certain Medicaid costs after an enrollee dies. Beside each question, write who you think can answer it: your Medicaid planner, an elder law attorney, a licensed financial professional, or “not sure.” [3]

WHY THIS COMES FIRST These are different questions, and they often belong to different people. Sorting them means each one reaches someone who can answer it.

What can wait for a professional

- Which of Mom's things are counted and which aren't. That depends on her state and her situation.
- What happens with the house.
- What Dad keeps, and what he has to live on.
- Whether anything should be moved, retitled, sold or given away. That is a legal and financial decision, and it isn't one for this page.
- What any of it adds up to. Your three pages are what make that conversation a good one.

If someone suggests changing a name or giving something away

Write the idea down as a question and take it to an elder law attorney. The Consumer Financial Protection Bureau's guide for homeowners says to seek advice from legal and tax professionals, because transferring property can have significant financial implications. [4]

What this guide doesn't do

It doesn't say what Mom can keep, how the house or any account is treated, or what Dad's share is. It isn't legal, financial or tax advice. It puts the first three things on paper.

Ready for the next step?

You've listed what Mom owns, written down what you've been told and sorted your questions. The planning interview takes it from there: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

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WHERE THIS COMES FROM

That the money in a joint account is jointly owned, and the advice to seek legal and tax advice about transferring property, follow the Consumer Financial Protection Bureau. That Medicaid's rules vary from state to state follows the federal long-term care site. The description of estate recovery is KFF's. The order is ours.

1. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options (Managing Someone Else's Money)
2. Administration for Community Living (LongTermCare information), Medicaid
3. KFF, What is Medicaid Estate Recovery?
4. Consumer Financial Protection Bureau, Leaving your home to children or heirs (Older Americans Housing Guide)